

DELEGATED DECISION - OFFICER RECORD & REPORT

Classification: Official

Officer Checks	Initials	Date
Planning Officer recommendation:	AL	26/01/2026
All consultations received (or explained if not in report):	YES	-
Pre-commencement condition agreement:	N/A	-
EIA Development - notify planning casework unit of decision:	N/A	-
Legal Agreement uploaded 5 working days prior to sign off:	N/A	-
Authorisation	Initials	Date
Team leader authorisation / sign off:	AN	26/01/2026
Assistant planner final checks and despatch:	BB	26/01/2026

Application Details	
Application No.	25/01011/OUT
Applicant	Mr D Akers - Euroview Manufacturing Ltd
Address	Land to The West of Sladburys Lane Clacton on Sea
Town / Parish	Clacton Non Parished
Development Proposal	Outline Planning Application (all matters reserved) - Up to 30 dwellings plus associated infrastructure including a new access onto Sladburys Lane.
Case Officer	Amy Lang
Recommendation	Refusal - Outline

1. CONSULTATIONS & REPRESENTATIONS

Town / Parish Council Comments

Clacton – no parish council.

Member Referral (committee call-in)

Call-in received from Cllr Andy Baker on 05.08.2025 for the following reasons:

- Is potentially contrary to the development plan (Local Plan/LDF) or Government Guidance.
- Negative impact on urban design/street scene.
- Highways impact and/or other traffic issues.
- Flood Risk.
- Negative Impact on neighbours.
- Other material considerations as follows: -
As red line site does not include the land where the visibility splay will be required, it is highly likely that this will be unachievable, therefore making the application potentially impossible to implement.
- Application site is outside the Settlement Development Boundary (SDB) therefore contrary to LP Policy SPL2.
- Application site sits within a Strategic Green Gap, therefore contrary to LP Policy PPL6.
- TDC has a Housing Land Supply of over 6 years, and therefore this application is possibly contrary to LP Plan SP4.
- Application site is likely to contribute or cause flood risk offsite, therefore contrary to LP Policy PPL1.

Referral to committee was not required for the following reason:

- Recommendation of refusal.

Consultation Responses

Anglian Water Services
Ltd
08.08.2025

ASSETS

Section 1 - Assets Affected

Our records show that there are no assets owned by Anglian Water or those subject to an adoption agreement within the development site boundary. However, it is highly recommended that the applicant carries out a thorough investigation of your proposed working area to establish whether any unmapped public or private sewers and lateral drains are in existence.

Due to the private sewer transfer in October 2011 many newly adopted public used water assets and their history are not indicated on our records. You also need to be aware that your development site may contain private water mains, drains or other assets not shown on our records. These are private assets and not the responsibility of Anglian Water but that of the landowner

WASTEWATER SERVICES

Section 2 - Wastewater Treatment - Condition

This site is within the catchment of Clacton-Holland Haven Water Recycling Centre (WRC), which currently lacks the capacity to accommodate the additional flows generated by the proposed development.

However, Clacton-Holland Haven WRC is included within our Business Plan as a named growth scheme with investment delivery planned between 2025-2030. To ensure there is no pollution or deterioration in the receiving watercourse due to the additional foul flows that would arise from the development, we recommend a planning condition is applied if permission is granted.

Condition: Prior to occupation written confirmation from Anglian Water must be submitted confirming there is sufficient headroom at the water recycling centre to accommodate the foul flows from the development site. This condition shall cease to have effect if the development is first occupied after April 2030.

Reason: To protect water quality, prevent pollution and secure sustainable development having regard to paragraphs 7/8 and 187 of the National Planning Policy Framework

Section 3 - Used Water Network

This response has been based on the following submitted documents: Flood Risk Assessment and Drainage Statement - 2409-955 Sladburys Lane, Holland-on- sea.

The sewerage system at present has available capacity for the anticipated foul flows. If the developer wishes to connect to our sewerage network they should serve notice under Section 106 of the

Water Industry Act 1991. We will then advise them of the most suitable point of connection.

1. INFORMATIVE - Notification of intention to connect to the public sewer under S106 of the Water Industry Act Approval and consent will be required by Anglian Water, under the Water Industry Act 1991. Contact Development Services Team 0345 606 6087 Option 2.
2. INFORMATIVE - Protection of existing assets - A public sewer is shown on record plans within the land identified for the proposed development. It appears that development proposals will affect existing public sewers. It is recommended that the applicant contacts Anglian Water Development Services Team for further advice on this matter. Building over existing public sewers will not be permitted (without agreement) from Anglian Water.
3. INFORMATIVE - Building near to a public sewer - No building will be permitted within the statutory easement width of 3 metres from the pipeline without agreement from Anglian Water. Please contact Development Services Team on 0345 606 6087 Option 2.
4. INFORMATIVE: The developer should note that the site drainage details submitted have not been approved for the purposes of adoption. If the developer wishes to have the sewers included in a sewer adoption agreement with Anglian Water (under Sections 104 of the Water Industry Act 1991), they should contact our Development Services Team on 0345 606 6087 Option 2 at the earliest opportunity. Sewers intended for adoption should be designed and constructed in accordance with Sewers for Adoption guide for developers, as supplemented by Anglian Water's requirements."

Section 4 - Surface Water Disposal

The preferred method of surface water disposal would be to a sustainable drainage system (SuDS) with connection to sewer seen as the last option. Building Regulations (part H) on Drainage and Waste Disposal for England includes a surface water drainage hierarchy, with infiltration on site as the preferred disposal option, followed by discharge to watercourse and then connection to a sewer.

From the Flood Risk Assessment and Drainage Statement - 2409-955 Sladburys Lane, Holland-on-sea submitted to support the planning application the proposed method of surface water management does not relate to Anglian Water operated assets. As such, we are unable to provide comments on the suitability of the surface water management. Should the proposed method of surface water management change to include interaction with Anglian Water operated assets, we would wish to be re-consulted to ensure that an effective surface water drainage strategy is prepared and implemented.

If the developer wishes Anglian Water to be the adopting body for all or part of the proposed SuDS scheme the Design and Construction Guidance must be followed. We would recommend the applicant contact us at the earliest opportunity to discuss their SuDS design via a Pre-Design Strategic Assessment (PDSA). The Lead Local Flood Authority (LLFA) are a statutory consultee for all major development and should be consulted as early as possible to ensure the proposed drainage system meets with minimum operational standards and is beneficial for all concerned organisations and individuals.

We promote the use of SuDS as a sustainable and natural way of controlling surface water run-off.

Please find below our SuDS website link for further information.
<https://www.anglianwater.co.uk/developers/drainage-services/sustainable-drainage-systems/>

Essex County Council
Archaeology
28.07.2025

The application is for Outline Planning Application (all matters reserved) - Up to 30 dwellings plus associated infrastructure including a new access onto Sladburys Lane.

The proposed development lies within an area recorded on the Essex Historic Environment Record (EHER 2973) as containing evidence for archaeological remains as recorded through aerial photography. The features recorded suggest there may be surviving below ground remains relating to historic field boundaries, trackways of unknown date and possible prehistoric ritual monuments which would be disturbed or destroyed by the proposed development. Sladburys Lane is a historic route which linked Little Holland to Great Holland, the Chapman and Andre map of 1777 reveals there was scattered settlement along the road.

The application fails to provide any information on the nature or significance of the potential archaeological remains. To understand the potential for, and significance of, archaeological deposits impacted by the proposal, a programme of evaluation is being recommended in line with paragraph 207 of the National Planning Policy Framework (2024).

In view of the above, I recommend that the following conditions are placed on any permission:

Archaeological trial trenching and excavation

(1) No development or preliminary groundworks of any kind shall take place until a programme of archaeological investigation has been secured in accordance with a Written Scheme of Investigation (WSI) which has been submitted by the applicant, for approval by the Local Planning Authority.

(2) No development or preliminary groundworks of any kind shall take place until the completion of the programme of archaeological investigation identified in the WSI defined in 1 above, and any subsequent mitigation has been agreed.

(3) The applicant will submit a final archaeological report or (if appropriate) a Post Excavation Assessment report and/or an Updated Project Design for approval by the Local Planning Authority. This shall be submitted within 6 months of the date of completion of the archaeological fieldwork unless otherwise agreed in advance by the Local Planning Authority.

Essex County Council
Ecology
29.08.2025

Summary

We have reviewed the Ecological Impact Appraisal (Liz Lord Ecology, Rev A, June 2025) and Biodiversity Net Gain (Liz Lord Ecology, Rev A, June 2025) relating to the likely impacts of development on designated sites, protected and Priority species & habitats and identification of appropriate mitigation measures.

We are satisfied that there is sufficient ecological information available to

support determination of this application.

This provides certainty for the LPA of the likely impacts on designated sites, protected and Priority species & habitats and, with appropriate mitigation measures secured, the development can be made acceptable.

The mitigation measures identified in the Ecological Impact Appraisal (Liz Lord Ecology, Rev A, June 2025) should be secured by a condition of any consent and implemented in full. This is necessary to conserve and enhance protected and Priority species particularly those recorded in the locality.

We support the proposed reasonable biodiversity enhancements for protected, Priority and threatened species, which have been recommended to secure net gains for biodiversity, as outlined under Paragraph 187d and 193d of the National Planning Policy Framework (December 2024). The reasonable biodiversity enhancement measures should be outlined within a separate Biodiversity Enhancement Strategy and should be secured by a condition of any consent.

This will enable LPA to demonstrate its compliance with its statutory duties including its biodiversity duty under s40 NERC Act 2006 (as amended).

Please note we do not provide comments on Biodiversity Net Gain as we have been instructed to leave comments on this matter to the LPA.

Impacts will be minimised such that the proposal is acceptable, subject to the conditions below based on BS42020:2013. We recommend that submission for approval and implementation of the details below should be a condition of any planning consent.

Recommended conditions

1. ACTION REQUIRED IN ACCORDANCE WITH ECOLOGICAL APPRAISAL RECOMMENDATIONS

"All mitigation measures and/or works shall be carried out in accordance with the details contained in the Ecological Impact Appraisal (Liz Lord Ecology, Rev A, June 2025) as already submitted with the planning application and agreed in principle with the local planning authority prior to determination.

This may include the appointment of an appropriately competent person e.g. an ecological clerk of works (ECoW) to provide on-site ecological expertise during construction. The appointed person shall undertake all activities, and works shall be carried out, in accordance with the approved details."

Reason: To conserve protected and Priority species and allow the LPA to discharge its duties under the Conservation of Habitats and Species Regulations 2017 (as amended), the Wildlife & Countryside Act 1981 (as amended) and s40 of the NERC Act 2006 (as amended).

2. PRIOR TO ANY WORKS ABOVE SLAB LEVEL: BIODIVERSITY ENHANCEMENT STRATEGY

"Prior to any works above slab level, a Biodiversity Enhancement Strategy for protected, Priority and threatened species, prepared by a

suitably qualified ecologist in line with the recommendations of the Ecological Impact Appraisal (Liz Lord Ecology, Rev A, June 2025), shall be submitted to and approved in writing by the local planning authority.

The content of the Biodiversity Enhancement Strategy shall include the following:

- a) Purpose and conservation objectives for the proposed enhancement measures;
- b) detailed designs or product descriptions to achieve stated objectives;
- c) locations of proposed enhancement measures by appropriate maps and plans (where relevant);
- d) persons responsible for implementing the enhancement measures; and
- e) details of initial aftercare and long-term maintenance (where relevant).

The works shall be implemented in accordance with the approved details shall be retained in that manner thereafter.”

Reason: To enhance protected, Priority and threatened species and allow the LPA to discharge its duties under paragraph 187d of NPPF 2024 and s40 of the NERC Act 2006 (as amended).

3. PRIOR TO OCCUPATION: WILDLIFE SENSITIVE LIGHTING DESIGN SCHEME

“Prior to occupation, a “lighting design strategy for biodiversity” in accordance with Guidance Note 08/23 (Institute of Lighting Professionals) shall be submitted to and approved in writing by the local planning authority. The strategy shall:

- a) identify those areas/features on site that are particularly sensitive for bats and that are likely to cause disturbance in or around their breeding sites and resting places or along important routes used to access key areas of their territory, for example, for foraging; and
- b) show how and where external lighting will be installed (through provision of appropriate lighting contour plans and technical specifications) so that it can be clearly demonstrated that areas to be lit will not disturb or prevent the above species using their territory or having access to their breeding sites and resting places.

All external lighting shall be installed in accordance with the specifications and locations set out in the scheme and maintained thereafter in accordance with the scheme. Under no circumstances should any other external lighting be installed without prior consent from the local planning authority.”

Reason: To allow the LPA to discharge its duties under the Conservation of Habitats and Species Regulations 2017 (as amended), the Wildlife & Countryside Act 1981 (as amended) and s40 of the NERC Act 2006 (as amended).

Please do not hesitate to contact us if you have any queries in relation to this advice.

ECC Green
Infrastructure
22.07.2025

ECC GI position

Having reviewed the Planning Statement, Ecological Impact Assessment

(EIA), Biodiversity Net Gain (BNG) Assessment and the associated documents which accompanied the planning application, we do not object to the granting of 25/01011/OUT. However, we would advise the following recommendations and conditions are considered to further improve the GI/Landscape strategy and help achieve net environmental gains and climate resilient development:

The Planning Statement and BNG Assessment include an illustrative site layout plan indicating potential landscaping proposal. However, the plan does not clearly distinguish between existing habitat features and proposed new planting. While both documents state that boundary hedgerows, trees, bramble scrub, and grassland margins will be retained, and that the landscaping approach is based on enhancing these features, further clarity is needed.

The proposals include Sustainable Drainage Systems (SuDS), areas of neutral grassland with potential for species-rich wildflower mixes, planting of mixed scrub, a circular walking route, vegetated gardens, and the possibility of soft landscaping, hedging, or tree planting along the frontage of some dwellings. It is recommended that detailed Green Infrastructure (GI) and landscape proposals be secured through appropriately worded planning conditions with submission of detailed landscape and GI Strategy and plan.

Biodiversity Net Gain

The BNG Assessment predicts a net loss of -5.65 habitat units (-53.27%) and no change in hedgerow units, resulting in no net gain. There are no watercourses present on site. The loss is primarily attributed to the removal of grassland and a potential rural tree to accommodate the proposed development.

While the post-development habitat plan and the illustrative site layout (Appendix 1 of the BNG Assessment) indicate the potential inclusion of 40 metres of species-rich hedgerow, this feature was not accounted for in the BNG calculation. Additionally, there is an inconsistency in the number of dwellings referenced: the BNG Assessment and EIA describe 29 dwellings, whereas the planning application and Planning Statement refer to 30. It is unclear whether the additional dwelling has been factored into the BNG calculation or how it may affect the available space for landscaping and GI provision.

Despite the potential for additional habitat features, the current BNG calculation does not meet the statutory 10% net gain requirement for habitats. The applicant proposes to address this shortfall through the purchase of off-site biodiversity units, which can be secured via a planning condition.

It is essential the proposal demonstrate the application of the BNG hierarchy to justify why onsite delivery may not be feasible. This hierarchy ensures that all possible measures to avoid, minimise, and compensate for biodiversity loss are thoroughly explored. By adhering to this structured approach, developers can transparently show that offsite solutions are necessary and that they have made every effort to achieve the best possible outcomes for biodiversity, aligning with regulatory requirements and promoting sustainable development.

It is acknowledged that on-site delivery might not always be feasible, and off-site delivery could offer additional benefits, including the protection of areas with local natural and wildlife value. It is recommended to discuss off-site and unit purchases, with Tendring District Council and take into consideration the habitat creation strategic opportunity areas within the Essex Local Nature Recovery Strategy (2025) for habitats that could become important for biodiversity. The BNG Assessment should be updated once the landscape provisions for both on-site and off-site areas have been determined and finalised.

Additionally, the EIA recommends considering other ecological enhancements not captured by the metric, such as a bird and bat boxes, planting pollinator species and retention of existing habitat corridors and hibernacula. These enhancement and mitigation measures identified in the EIA and BNG Assessment are instrumental in producing quality GI. Therefore, all these GI elements should be incorporated into the detailed design and secured through suitably worded conditions.

The provision of educational signage is welcomed. Careful consideration should also be given to the inclusion of vegetated/private gardens in BNG calculations. While they can support biodiversity, their long-term value is uncertain due to reliance on resident management and the lack of enforceable maintenance. To help mitigate this, the provision of residential information packs promoting wildlife-friendly gardening could be explored.

Management and Maintenance

It is essential to consider from the outset how GI habitat features will be managed and monitored alongside BNG to ensure effective delivery. The BNG Assessment recommends preparing a Habitat Management and Monitoring Plan (HMMP) to secure the long-term delivery of biodiversity enhancements. The HMMP should ensure BNG and GI goals are met. The assessment provides limited information on the proposed management approach; however, further detail is required to ensure clarity and effectiveness. These and the mitigation measures set out in the EIA are to be secured through suitably worded planning conditions. The ECC GI Team supports the inclusion of these recommendations as planning conditions.

Additionally, it is recommended that clear quality standards be established for both the construction phase and the long-term maintenance of GI. It is advised that a Construction Environmental Management Plan (CEMP) be implemented to mitigate environmental impacts during construction. This plan should outline measures for protecting existing GI features and facilitating the successful establishment of new GI elements. Furthermore, a Landscape and Ecological Management Plan (LEMP) should be prepared to detail the long-term management strategy, including implementation timelines, maintenance activities, funding mechanisms, and monitoring protocols for GI assets.

To ensure satisfactory delivery and long-term management and maintenance of retained and new green infrastructure assets we would recommend the following conditions:

Condition 1

No works shall take place until a detailed Green Infrastructure/ Landscape Strategy for the site, based on the Essex Green Infrastructure Strategy and Essex GI Standards and an assessment of the ecological context of the development, has been submitted to and approved in writing by a Landscape specialist at the Local Planning Authority. The scheme should include but not be limited to:

- Detailed soft landscaping plans specifying species, quantities, and planting sizes.
- Advance planting proposals around construction site.
- A phased implementation timeline for GI and BNG features, where possible.
- The strategy plan should also demonstrate:
 - The development should be designed to deliver Biodiversity Net Gain and wider environmental net gains, that forms a key component of nature recovery networks and the wider landscape scale GI network.
- Demonstrate that the development site/setting has been reviewed for multiple functions and benefits (listed in the Essex GI Strategy (chapter 5.1, page 35) and ensure that green/open spaces are designed to ensure multi- purpose and functional use.
- Travel Infrastructure should give consideration to use of GI features to ensure accessibility and attractiveness across the site.
- Ensure there are good accessible links for all from the development to existing settlements, urban centres, rural areas, active travel networks and green spaces.
- Demonstrate how the GI has been designed to provide recreational facilities for different user and age groups. It should deliver social inclusive processes that are open to all and incorporate the knowledge and needs of diverse parties.

Reason:

GI and its connectivity are to be at the heart of decision making at every stage in the planning and design process for all developments from the outset, thus GI is integral to place shaping. Planning and design of GI will ensure individual building, street, neighbourhood and landscape scale intervention features contribute to a coherent, meaningful and practical network of high-quality and multi-functional GI, that will provide multiple environment, social and economic benefits within the development and wider area. By ensuring good early design in light of the local context and including local policy context, the GI will more effectively meet local priorities and needs.

The National Planning Policy Framework 2024 paragraph 8c sets environmental protection and enhancement as one of the 3 objectives of the planning system. Paragraph 96(c) states that access to a network of high-quality open spaces and opportunities for sport and physical activity is important for the health and well-being of communities and (paragraph 164(a)) can deliver wider benefits for nature and support efforts to address climate change.

Conditions 2 - 4: Statement of intention for GI delivery and management.

Notwithstanding the details submitted as part of the application, no development shall occur until full details of the proposed GI/Landscape

arrangements and access are submitted via the appropriate document, (such as a Landscape Strategy, Construction Environment Management Plan, Landscape and Ecological Management Plan and Habitat Management and Monitoring Plan) and approved in writing by landscape specialist/ecologist at the Local Planning Authority. It is recommended the conditions for the Construction Environment Management Plan, Landscape and Ecological Management Plan and Habitat Management and Monitoring Plan to include the following:

Condition 2

Further information to be included in the Construction Environment Management Plan (CEMP) to outline the protection of retained Green Infrastructure (GI), such as trees and hedges, during construction. The CEMP should also detail how new GI will be implemented in phases, in relation to the development's phasing, to allow for early establishment where feasible.

Reason:

The phased implementation of new GI of the development construction will allow for the GI to mature and it will provide further benefit of reducing/buffering the aesthetic impact from the construction work.

Condition 3

Additional information to be included in the Landscape Ecological Management Plan and work schedule to provide details on the management and maintenance operations for a minimum of 10 years. This plan should include:

- a. who is responsible for GI assets (including any surface water drainage system) and the maintenance activities/frequencies.
- b. how management company services for the maintenance of GI assets and green spaces shall be funded and managed for the lifetime of the development.
- c. The applicant or any successor in title must maintain yearly logs of maintenance which should be carried out in accordance with any approved LEMP/Maintenance Plan. These must be available for inspection upon a request by the Local Planning Authority.

Condition 4

Further information to be included in the Biodiversity Gain Plan and Habitat Management and Monitoring Plan to ensure the agreed biodiversity net gain (BNG) and associated GI goals are achieved. It is essential to consider from the outset how GI habitat features will be managed and monitored alongside BNG to ensure effective delivery.

Reasons:

To ensure measurable net gains and compliance with LPA's Green Infrastructure and Wildlife and Biodiversity Policies allowing the LPA to discharge its duties under the NPPF (2024). GI must be maintained for the development's lifetime as per the approved Maintenance Plan(s). Appropriate management, maintenance, monitoring and funding mechanisms are essential to maintain the GI's value. This ensures GI assets continue to provide high-quality, multi-functional benefits.

Failure to provide the required information before starting work may reduce the development's value, making it undesirable and increasing climate change impacts like flood risk or air pollution.

Other Considerations

New Tree Planting and their early establishment

ECC GI Team will expect that all new trees on new developments will have their establishment considered at the time of planting. This should include weeding, mulching and watering. All newly planted trees with a trunk diameter of 6cm or more will be watered for three years via a buried watering tube, irrigation bag or irrigation well; applying 60 litres per visit, at least 14 times between May and September. Mulch, stakes, ties and weed establishment will also be inspected and actioned as required. Stakes and ties should be removed 3 years after planting.

Sustainable Design

ECCs GI team support a strategy that seeks to maximise opportunity for habitat retention, including the provision of ecological measures set out in EIA. To ensure the integration of nature into development, ECCs GI team recommends sustainable design is explored and consideration of the following: -

- Bug hotels and log piles
- Hedgehog highways - gaps in dwellings fencing.
- Wildflower zones and edible planting.
- Alternatives to low quality, monoculture grasses are explored for amenity areas. The use of mixed/ species rich grass seeds.
- Building in climate resilience as part of the planting mix, not only to provide shading and flood management i.e.
- Reduce solar glare,
- Improve building energy efficiency,
- Provide carbon storage and sequestration,
- Drought tolerant planting i.e.
- Xeriscaping: Landscaping with minimal use of water and climate resilient planting.
- GI and SuDs should be developed together to maximise benefits through multifunctionality- they do this by helping to reduce flood risk whilst providing biodiversity and amenity benefits.
- Streets trees should be used alongside other additional tree planting.
- NPPF Paragraph 136 states "Planning policies and decisions should ensure that new streets are tree-lined, that appropriate measures are in place to secure the long-term maintenance of newly planted trees.
- The provision of residents' information packs to future occupants, offering guidance on how to manage their gardens in a wildlife-friendly manner to support local biodiversity.

Essex Local Nature Recovery Strategy

The Essex Local Nature Recovery Strategy (LNRS) strategy and maps aims to implement county-wide nature recovery initiatives, highlighting key biodiversity areas and opportunities for habitat creation or improvement. The ELNRS features three main types of maps:

- Strategic Opportunities - These are areas identified as having potential to become important for biodiversity through habitat creation:

- Woodland
- Grassland
- Scrub
- Freshwater (Standing Water & River Buffers)
- Coastal and Marine habitats
- Areas of Particular Importance for Biodiversity (APIBs) - These include nationally and locally designated sites.
- Potential Opportunities - identifies urban and other areas where habitat creation could be beneficial:

Opportunities to enhance biodiversity and create habitats, contributing positively to the local environment. Conservation efforts might be more concentrated on nearby areas identified as top priorities for habitat creation. <https://place-services.maps.arcgis.com/apps/webappviewer/index.html?id=d7e07ae774ea43249765b4b8f6514513%20>

Natural Play

The proposal does not mention the provision for play. ECCs GI team would recommend the consideration of natural play. For this, we would expect play strategies to be formed by the character and function of the green spaces. It should be imaginatively designed using landforms, level changes and water, as well as natural materials such as logs or boulders, which create an attractive setting for play.

Other useful tools

The ECC GI team recommends that the Urban Greening Factor is consulted to establish best practice. The Urban Greening Factor (UGF) is a planning tool to improve the provision of Green Infrastructure (GI) particularly in urban areas. It can be used to increase urban greening and contribute to Biodiversity Net Gain. While it is voluntary, the ECC GI team strongly recommends utilisation of the UGF, and it can significantly contribute to place making, nature recovery, biodiversity enhancement, and connectivity to larger green infrastructure networks within proximity to the development site. More information can be found within the National Green Infrastructure Framework Standards (2023).

Another useful tool to explore is Natural England's Environmental Benefits from Nature tool. It can be utilised to identify opportunities for enhancing broader benefits from nature while avoiding and minimising negative impacts. It is designed to complement the Biodiversity Metric.

INFORMATIVES:

- Any GI features proposed for adoption by Essex County Council should be consulted on with the relevant Highways Development Management Office.
- It is not within the scope of the GI team to comment on the overall viability of a scheme as the decision is based on a range of issues which are outside of this authority's area of expertise.
- We will advise on the acceptability of green infrastructure and the information submitted on planning applications based on the key documents listed within this letter. However, any relevant information relating to green infrastructure submitted as part of any previous applications should be submitted with the updated information.
- The GI consultation responses provide a high-level review of the

proposals onsite. However, the relevant specialists e.g., ecology and landscape specialists should still be consulted on the information submitted. It should be noted that detailed discharge of condition applications should be referred to technical specialists rather than the GI planning team.

- Mitigating and adapting to a changing climate is a national and Essex County Council priority. The Climate Change Act 2008 (amended in 2019) commits the UK to achieving net-zero by 2050. In Essex, the Essex Climate Action Commission proposed 160+ recommendations for climate action. Essex County Council is working with partners to achieve specific goals by 2030, including net zero carbon development. All those active in the development sector should have regard to these goals and applicants are invited to sign up to the Essex Developers' Group Climate Charter [2022] and to view the advice contained in the Essex Design Guide. Climate Action Advice guides for residents, businesses and schools are also available.

Please note: This letter is advisory and should only be considered as the opinion formed by specialist staff in relation to this particular matter.

ECC Highways Dept
08.08.2025

The information submitted with the planning application has been assessed by the Highway Authority and conclusions reached based on a desktop study based on the submitted material and google maps. It is noted the planning application is all matters reserved:

From a highways and transportation perspective the impact of the proposal is acceptable to the Highway Authority subject to the following requirements:

1. No occupation of the development shall take place until the following have been provided or completed:
 - a) The road junction shall be constructed at right angles to the highway boundary and to the existing carriageway and shall be provided with, kerb radii measuring a minimum of 6-metres with a 2-metre-wide footway on both sides of the junction and continued around the kerb radii with a straight section of carriageway to be provided from the entrance junction for 15 metres (details shall be agreed with the Local Planning Authority prior to commencement of the development).
 - b) 2.4 metre x 43 metre vehicle visibility splays in both directions of the proposed access, as measured from and along the nearside edge of the carriageway, in accordance with the guidance for a 30mph speed restriction.
 - c) Where possible within land under the control of the applicant and/or extent of highway, the provision of a 2-metre-wide footway between the proposed site access and the existing junction serving Edwin Giles Way (details shall be agreed with the Local Planning Authority prior to commencement of the development).
 - d) The Developer shall be responsible for the provision and implementation of a Residential Travel Information Pack per dwelling, for sustainable transport, approved by Essex County Council.

Reason: To ensure the proposal site is accessible by more sustainable modes of transport such as cycling and walking, in accordance with policy DM9 and DM10 of the Highway Authority's Development Management Policies, adopted as County Council Supplementary

Guidance and National Planning Policy Framework.

Informative:

- i) Any reserved matters planning application should include details of a site access to the required highway design standards, in this case the Manual for Streets (MfS), and that the access would be deliverable within land under the control of the applicant and/or extent of highway and should include a Stage 1 Road Safety Audit.
- ii) The development should be in be in accordance with the ECC Parking Standards Design and Good Practice, 2024.
- iii) All work within or affecting the highway is to be laid out and constructed by prior arrangement with and to the requirements and specifications of the Highway Authority; all details must be agreed before the commencement of works.

The applicants should be advised to contact the Development Management Team by email at development.management@essexhighways.org

- iv) The Highway Authority cannot accept any liability for costs associated with a developer's improvement. This includes design check safety audits, site supervision, commuted sums for maintenance and any potential claims under Part 1 and Part 2 of the Land Compensation Act 1973. To protect the Highway Authority against such compensation claims a cash deposit or bond may be required.
- v) v) Mitigating and adapting to a changing climate is a national and Essex County Council priority. The Climate Change Act 2008 (amended in 2019) commits the UK to achieving net-zero by 2050. In Essex, the Essex Climate Action Commission proposed 160+ recommendations for climate action. Essex County Council is working with partners to achieve specific goals by 2030, including net zero carbon development. All those active in the development sector should have regard to these goals and applicants are invited to sign up to the Essex Developers' Group Climate Charter [2022] and to view the advice contained in the Essex Design Guide. Climate Action Advice guides for residents, businesses and schools are also available.

Environmental
Protection
12.09.2025
Housing Services

The EP Team have no comments to make during this planning phase.

ECC SuDS Consultee
24.07.2025

Lead Local Flood Authority position
Having reviewed the Flood Risk Assessment and the associated documents which accompanied the planning application, we do not object to the granting of planning permission based on the following:

Condition 1

No works except demolition shall takes place until a detailed surface water drainage scheme for the site, based on sustainable drainage principles and an assessment of the hydrological and hydro geological

context of the development, has been submitted to and approved in writing by the local planning authority. The scheme should include but not be limited to:

- Verification of the suitability of infiltration of surface water for the development. This should be based on infiltration tests that have been undertaken in accordance with BRE 365 testing procedure and the infiltration testing methods found in chapter 25.3 of The CIRIA SuDS Manual C753.
- Limiting discharge rates to 1.8l/s for all storm events up to and including the 1 in 100 year plus 45% allowance for climate change storm event subject to agreement with the relevant third party/ All relevant permissions to discharge from the site into any outfall should be demonstrated.
- Provide sufficient storage to ensure no off site flooding as a result of the development during all storm events up to and including the 1 in 100 year plus 45% climate change event.
- Demonstrate that all storage features can half empty within 24 hours for the 1 in 30 plus 45% climate change critical storm event.
- Final modelling and calculations for all areas of the drainage system.
- The appropriate level of treatment for all runoff leaving the site, in line with the Simple Index Approach in chapter 26 of the CIRIA SuDS Manual C753.
- Detailed engineering drawings of each component of the drainage scheme.
- A final drainage plan which details exceedance and conveyance routes, FFL and ground levels, and location and sizing of any drainage features.
- An updated drainage strategy incorporating all of the above bullet points including matters already approved and highlighting any changes to the previously approved strategy.

The scheme shall subsequently be implemented prior to occupation. It should be noted that all outline applications are subject to the most up to date design criteria held by the LLFA.

Reason

- To prevent flooding by ensuring the satisfactory storage of/disposal of surface water from the site.
- To ensure the effective operation of SuDS features over the lifetime of the development.
- To provide mitigation of any environmental harm which may be caused to the local water environment
- Failure to provide the above required information before commencement of works may result in a system being installed that is not sufficient to deal with surface water occurring during rainfall events and may lead to increased flood risk and pollution hazard from the site.

Condition 2

Prior to occupation a maintenance plan detailing the maintenance arrangements including who is responsible for different elements of the surface water drainage system and the maintenance activities/frequencies, has been submitted to and agreed, in writing, by the Local Planning Authority.

Should any part be maintainable by a maintenance company, details of long term funding arrangements should be provided.

Reason

To ensure appropriate maintenance arrangements are put in place to enable the surface water drainage system to function as intended to ensure mitigation against flood risk.

Failure to provide the above required information prior to occupation may result in the installation of a system that is not properly maintained and may increase flood risk or pollution hazard from the site.

Condition 3

The applicant or any successor in title must maintain yearly logs of maintenance which should be carried out in accordance with any approved Maintenance Plan. These must be available for inspection upon a request by the Local Planning Authority.

Reason

To ensure the SuDS are maintained for the lifetime of the development as outlined in any approved Maintenance Plan so that they continue to function as intended to ensure mitigation against flood risk.

We also have the following advisory comments:

- We strongly recommend looking at the Essex Green Infrastructure Strategy to ensure that the proposals are implementing multifunctional green/blue features effectively. The link can be found below. <https://www.essex.gov.uk/protecting-environment>
- Please note that the Environment Agency updated the peak rainfall climate change allowances on the 10 May 2022. Planning applications with outline approval are not required to adjust an already approved climate change allowance, however, wherever possible, in cases that do not have a finalised drainage strategy please endeavour to use the updated climate change figures
- Flood risk assessments: climate change allowances - GOV.UK (www.gov.uk)

Any questions raised within this response should be directed to the applicant and the response should be provided to the LLFA for further consideration. If you are minded to approve the application contrary to this advice, we request that you contact us to allow further discussion and/or representations from us.

Summary of Flood Risk Responsibilities for your Council

We have not considered the following issues as part of this planning application as they are not within our direct remit; nevertheless these are all very important considerations for managing flood risk for this development, and determining the safety and acceptability of the proposal. Prior to deciding this application you should give due consideration to the issue(s) below. It may be that you need to consult relevant experts outside your planning team.

- Sequential Test in relation to fluvial flood risk;
- Safety of people (including the provision and adequacy of an emergency plan, temporary refuge and rescue or evacuation arrangements);
- Safety of the building;
- Flood recovery measures (including flood proofing and other building level resistance and resilience measures);
- Sustainability of the development.

In all circumstances where warning and emergency response is fundamental to managing flood risk, we advise local planning authorities to formally consider the emergency planning and rescue implications of new development in making their decisions.

Please see Appendix 1 at the end of this letter with more information on the flood risk responsibilities for your council.

INFORMATIVES:

- Essex County Council has a duty to maintain a register and record of assets which have a significant impact on the risk of flooding. In order to capture proposed SuDS which may form part of the future register, a copy of the SuDS assets in a GIS layer should be sent to suds@essex.gov.uk.
- Any drainage features proposed for adoption by Essex County Council should be consulted on with the relevant Highways Development Management Office.
- Changes to existing water courses may require separate consent under the Land Drainage Act before works take place. More information about consenting can be found in the attached standing advice note.
- It is the applicant's responsibility to check that they are complying with common law if the drainage scheme proposes to discharge into an off-site ditch/pipe. The applicant should seek consent where appropriate from other downstream riparian landowners.
- The Ministerial Statement made on 18th December 2014 (ref. HCWS161) states that the final decision regarding the viability and reasonableness of maintenance requirements lies with the LPA. It is not within the scope of the LLFA to comment on the overall viability of a scheme as the decision is based on a range of issues which are outside of this authority's area of expertise.
- We will advise on the acceptability of surface water and the information submitted on all planning applications submitted after the 15th of April 2015 based on the key documents listed within this letter. This includes applications which have been previously submitted as part of an earlier stage of the planning process and granted planning permission based on historic requirements. The Local Planning Authority should use the information submitted within this response in conjunction with any other relevant information submitted as part of this application or as part of preceding applications to make a balanced decision based on the available information.

Appendix 1 - Flood Risk responsibilities for your Council

The following paragraphs provide guidance to assist you in determining matters which are your responsibility to consider.

Safety of People (including the provision and adequacy of an emergency plan, temporary refuge and rescue or evacuation arrangements)

You need to be satisfied that the proposed procedures will ensure the safety of future occupants of the development. In all circumstances where warning and emergency response is fundamental to managing flood risk, we advise LPAs formally consider the emergency planning and rescue implications of new development in making their decisions. We do not normally comment on or approve the adequacy of flood emergency response procedures accompanying development proposals as we do not carry out these roles during a flood.

Flood recovery measures (including flood proofing and other building level resistance and resilience measures)

We recommend that consideration is given to the use of flood proofing measures to reduce the impact of flooding when it occurs. Both flood resilience and resistance measures can be used for flood proofing.

Flood resilient buildings are designed to reduce the consequences of flooding and speed up recovery from the effects of flooding; flood resistant construction can help prevent or minimise the amount of water entering a building. The National Planning Policy Framework confirms that resilient construction is favoured as it can be achieved more consistently and is less likely to encourage occupants to remain in buildings that could be at risk of rapid inundation.

Flood proofing measures include barriers on ground floor doors, windows and access points and bringing in electrical services into the building at a high level so that plugs are located above possible flood levels. Consultation with your building control department is recommended when determining if flood proofing measures are effective.

Further information can be found in the Department for Communities and Local Government publications 'Preparing for Floods' and 'Improving the flood performance of new buildings'.

Sustainability of the development

The purpose of the planning system is to contribute to the achievement of sustainable development. The NPPF recognises the key role that the planning system plays in helping to mitigate and adapt to the impacts of climate change, taking full account of flood risk and coastal change; this includes minimising vulnerability and providing resilience to these impacts. In making your decision on this planning application we advise you consider the sustainability of the development over its lifetime.

Tree & Landscape
Officer
24.07.2025
FIRST COMMENTS

The application site is partly in agricultural use and partly used for a temporary yard associated with the development of adjacent land. There are no trees or other significant vegetation in the main body of the land, however some site boundaries are demarcated by established countryside hedgerows and hedgerow Oaks.

The trees and hedgerows are an integral and intrinsic part of the landscape. The two Oaks on the southwestern boundary are afforded protection by Tendring District Council Tree Preservation Order TPO/15/14

It should be noted that the trees on the northwestern boundary are important features in their setting and are protected by the Forestry Commissions Felling License controls and by the Hedgerow Regulations 1997.

To quantify the amenity value and condition of trees and other vegetation on the perimeter of the application site and adjacent land an Arboricultural Impact Assessment (AIA) has been provided. The AIA contains an assessment of the trees and hedgerows and sets out the extent to which they are a constraint on the development potential of the land.

This information is in accordance with BS5837: 2012 Trees in relation to design, demolition and construction. Recommendations.

The indicative site layout shows that an open space and circular walkway will be created around the perimeter of the site and that there is sufficient separation between the trees and any built development to ensure that the perimeter trees will not be harmed by the implementation of the proposed development.

Should planning permission be likely to be granted then details of the measures that will be put in place to physically protect trees and hedgerows (a Tree Protection Plan [TPP] and Arboricultural Method Statement [AMS]) should be secured as a reserved matter.

In terms of the potential impact of the proposed development on the local landscape character the application site appears to be situated within the Clacton and The Sokens Clay Plateau Landscape Character Area (LCA) and almost immediately adjacent to the Holland Valley System LCA.

The Clacton and The Sokens Clay Plateau is a gently undulating agricultural plateau drained by The Holland Brook Valley System. It has low gappy hedgerows with occasional hedgerows trees that divide arable fields. It has an urban fringe character that is influenced by nurseries, caravan parks paddocks, holiday parks and industrial areas on the edges of developed land.

The Holland Valley System is in contrast with the flat landscapes of the Tendring Plateau. Country lanes drop down the valley sides and cross streams and the LCA is typically devoid of development.

The application site appears to be relatively typical of the characteristics relating to the edge of The Clacton and The Sokens Clay Plateau LCA although noticeably less so of the Holland Valley System because of the amount of adjacent development.

It is accepted that the character of the application site is influenced by existing adjacent and nearby development and consequently, in landscape terms, has a distinct urban fringe character.

With regard to the assessment of the impact of the proposed development on the local landscape Section 2.3 of the Planning Statement entitled 'The Sites Spatial Context' provides some information relating to the prominence and visual impact of the development on local landscape character. It refers to a Landscape and Visual Impact

Assessment (LVIA) relating to an earlier approved development of adjacent land.

Whilst this information is helpful and describes the planning inspectors view of the earlier, third party, application a new site specific LVIA it would be helpful to quantify the level of harm likely to be caused by the current development proposal and to inform measures that may be required to mitigate any identified harm.

This may not require a full LVIA but in order to establish the baseline qualities of the landscape and to assess the level of change and potential harm to the local landscape character some information akin to a Landscape and Visual Impact Assessment (LVIA) should be provided.

In terms of soft landscaping the broad principles set out in Section 5.5 of the Planning Statement are acceptable, however should planning permission be granted then details of soft landscaping, including the retention of boundary vegetation should be secured as a reserved matter.

Soft landscaping should be comprehensive and aim to soften, screen and enhance the appearance of the development.

Tree & Landscape
Officer
02.09.2025
SECOND COMMENTS

In terms of the potential impact of the proposed development on the local landscape character a Landscape and Visual Impact Assessment (LVIA) has now been provided by the applicant.

The LVIA sets out the baseline qualities of the existing landscape character and quantifies the level of harm likely to arise from the implementation of the proposed development.

It is accepted that a good level of screening and enclosure is provided by existing vegetation situated on the boundary of the application and that there is potential to enhance and strengthen the planting to improve screening.

It is clear that the proposed development would, if implemented, result in a permanent change of use of the land and would bring about a further urbanisation of the urban fringe.

However, section 7 of the LVIA entitled Conclusion confirms that the site has low landscape value and is well-contained by existing boundary vegetation. That the magnitude of change is 'small to negligible' and that landscape and visual effects are non-significant.

If the measures set out in section 6 of the LVIA entitled Mitigation and Enhancements, are implemented then the current level of screening will be improved by an appropriate level of soft landscaping

UU Open Spaces
11.08.2025

Public Realm Assessment

Play Space - current deficit:

- Deficit of 2.22 hectares of equipped play in Clacton & Holland on Sea

Formal Play - current deficit:

- Adequate formal open space in the area to cope with some future development

Settlement provision:

- Eastcliff 1.1 miles from the development

Officer Conclusions and Recommendations

Contribution necessary, related, and reasonable?
to comply with CIL Regs*

- As the adjacent site has a play area and open space in excess of the 10% requirement for that development. This is adequate to cope with some additional development.

- Please could it be clarified in a Reserved Matters application to show a clear pedestrian link from the new development to the existing.

Identified project*:

(In consultation with Town / Parish Council on upcoming projects or needs for maintenance)

- N/a

Representations (Summary)

13 letters of representations were received raising the following concerns and observations (including The Holland on Sea Residents Association). The matters raised that relate to material planning considerations can be summarised and addressed as follows (officer response in italics):

- Creeping, piecemeal development - will set a harmful precedent for further development eroding the countryside.
- Harm the rural character of the area.
- Poorly served by public transport.
- Lack of supporting infrastructure and amenities for all these new houses – such as doctors, schools, drainage and water infrastructure.

The principle of development and the impact on the character of the area are addressed in the main report below.

- Sladburys Lane / Picker Ditch Bridge cannot sustain this level of development – road too narrow, will worsen traffic congestion, safety concerns for pedestrians and cyclists, and highway safety overall.
- Noise, disturbance, dust, road damage and obstruction from construction and associated traffic.

Highway matters are addressed in the main report below. Noise and disturbance during construction are an unavoidable aspect of the development process and cannot, in themselves, justify refusal of planning permission. However, such impacts can be managed and mitigated through a Construction Management Plan, secured by condition, which can control matters such as working hours, deliveries etc.

- Harm to ecology and wildlife from loss of vegetation and light pollution.
- Surface water flooding.
- Harm to residential amenities.

These matters are addressed in the main report below under the corresponding headings.

Matters that have been raised that do not form material planning considerations are summarised below:

- People do not adhere to the speed limit.
This is a matter for the police and cannot be managed or controlled by planning legislation.

Declarations of Interest

Not applicable.

Notification of Decision (third parties to be informed of the decision)

Not applicable.

2. RELEVANT PLANNING HISTORY

No site-specific history.

Adjacent Site – Residential Development:

15/01351/OUT	Outline planning application for residential development up to 132 dwellings and open space, including provision for a sports field and a new vehicular access via Sladburys Lane.	Refused	11.08.2016
17/00028/REFUSE	15/01351/OUT Allowed on Appeal	Allowed	11.10.2017
20/01416/DETAIL	Reserved matters application for residential development up to 132 dwellings with associated open space, landscaping, drainage, parking, servicing and utility infrastructure, with new vehicular access via Sladburys Lane.	Approved	29.10.2021
22/01343/VOC	Variation of condition 1 of application 20/01416/DETAIL to update the approved drawings: house types HT A and HT P changes from two bedrooms to one bedroom, house type HT C changes from three bedrooms to two bedrooms, tenures of plots 9 and 15 swapped.	Approved	12.07.2023
<i>+Various DISCONS in relation to the above development of 132 homes.</i>			
23/00064/NACON	Proposed consultation for bulk supply agreement with Affinity Water and bulk discharge agreement with Anglian Water.	Determination	26.01.2023

3. POLICY CONSIDERATIONS

Status of the Local Plan

Planning law requires that decisions on applications must be taken in accordance with the development plan unless there are material considerations that indicate otherwise (Section 70(2) of the 1990 Town and Country Planning Act and Section 38(6) of the Planning and Compulsory Purchase Act 2004). This is set out in Paragraph 2 of the National Planning Policy Framework (the Framework). The 'development plan' for Tendring comprises, in part, Sections 1 and 2 of the Tendring District Local Plan 2013-33 and Beyond (adopted January 2021 and January 2022, respectively), supported by our suite of evidence base core documents (<https://www.tendringdc.uk/content/evidence-base>) together with any Neighbourhood Plans that have been made and the Minerals and Waste Local Plans adopted by Essex County Council.

In relation to housing supply:

The Framework requires Councils to significantly boost the supply of homes to meet the District's housing need. Paragraph 78 states that local planning authorities should identify and update annually a supply of specific deliverable sites sufficient to provide a minimum of five years' worth of housing against their housing requirement set out in adopted strategic policies, or against their local housing need where the strategic policies are more than five years old. The supply of specific deliverable sites should in addition include a buffer (moved forward from later in the plan period) of 5% to ensure choice and competition in the market for land, unless the Housing Delivery Test (HDT) demonstrates significant under delivery of housing over the previous 3 years - in which case a higher buffer is required. Section 1 of the Local Plan, which establishes the District's annual housing requirement, reached five years old on 26 January 2026.

On 12th December 2024 the Government published the Housing Delivery Test: 2023 measurement. Against a requirement for 1,466 homes for 2020-2023, the total number of homes delivered was 2,343. The Council's HDT 2023 measurement was therefore 160%, and a buffer of 5% is to be used when calculating the Council's five-year land supply position.

The Council demonstrates its supply of specific deliverable sites within the Strategic Housing Land Availability Assessment (SHLAA), which is published annually. The most recent SHLAA was published by the Council in December 2025.

From 26th January 2026, the Council is required to calculate its five-year land supply position against the local housing need determined using the Standard Method set out in Planning Practice Guidance. The housing requirement for Tendring is 1,063 homes a year. The most recent SHLAA demonstrates a 3.22-year supply of deliverable housing sites against the annual requirement, plus a 5% buffer. The SHLAA can be viewed on the Council's website: <https://www.tendringdc.gov.uk/content/monitoring-and-shlaa>

As a result, the 'titled balance' at paragraph 11 d) of the Framework does apply to decisions relating to new housing development.

Neighbourhood Plans

A neighbourhood plan introduced by the Localism Act that can be prepared by the local community and gives communities the power to develop a shared vision for their area. Neighbourhood plans can shape, direct and help to deliver sustainable development, by influencing local planning decisions as part of the statutory development plan to promote development and uphold the strategic policies as part of the Development Plan alongside the Local Plan. Relevant policies are considered in the assessment. Further information on our Neighbourhood Plans and their progress can be found via our website <https://www.tendringdc.uk/content/neighbourhood-plans>

At the time of writing, there are no draft or adopted neighbourhood plans relevant to this site.

4. RELEVANT POLICIES & GOVERNMENT GUIDANCE

National:

National Planning Policy Framework 2024 ([NPPF](#))

National Planning Practice Guidance ([NPPG](#))

Local:

Tendring District Local Plan 2013-2033 and Beyond North Essex Authorities' Shared Strategic Section 1 (adopted January 2021)

SP1	Presumption in Favour of Sustainable Development
SP2	Recreational disturbance Avoidance and Mitigation Strategy (RAMS)
SP3	Spatial Strategy for North Essex
SP4	Meeting Housing Needs
SP6	Infrastructure & Connectivity
SP7	Place Shaping Principles

Tendring District Local Plan 2013-2033 and Beyond Section 2 (adopted January 2022)

SPL1	Managing Growth
SPL2	Settlement Development Boundaries
SPL3	Sustainable Design
HP5	Open Space, Sports and Recreation Facilities
LP1	Housing Supply
LP2	Housing Choice
LP3	Housing Density and Standards
LP4	Housing Layout
LP5	Affordable Housing
PPL1	Development and Flood Risk
PPL3	The Rural Landscape
PPL4	Biodiversity and Geodiversity
PPL5	Water Conservation, Drainage and Sewerage
PPL6	Strategic Green Gaps
PPL7	Archaeology
PPL10	Renewable Energy Generation and Energy efficiency Measures
CP1	Sustainable Transport and Accessibility
CP2	Improving the Transport Network
DI1	Infrastructure Delivery and Impact Mitigation

Supplementary Planning Documents

Essex Coast Recreational Disturbance Avoidance and Mitigation Strategy SPD 2020 (RAMS)

Tendring Provision of Recreational [Open Space for New Development SPD](#) 2008

[Essex Design Guide](#)

[Technical housing standards](#): nationally described space standard Published 27 March 2015

Local Planning Guidance

[Essex Parking Guidance](#) Part 1: Parking Standards Design and Good Practice 2024

5. OFFICER APPRAISAL

Site Description & Context

The application relates to a parcel of agricultural land located to the northwestern side of Sladburys Lane, on the northern edge of the built-up area of Holland on Sea. The site measures approximately 1.6 hectares in size and is partly in agricultural use and partly used for the temporary construction compound associated with the recent development of new homes on adjacent land. There are no trees or other significant vegetation in the main body of the land, however some site boundaries are demarcated by established countryside hedgerows and hedgerow Oaks, including two protected by TPO/15/14.

There are existing dwellings to the west and south of the site with open fields beyond.

The site is outside but adjacent to the defined Settlement Development Boundary of Clacton on Sea and is also defined as a Strategic Green Gap within the adopted Tendring District Local Plan 2013-2033 and Beyond.

Description of Proposal

The application seeks Outline planning permission, with all matters reserved, for the erection of up to 30 dwellings, plus associated infrastructure including a new access onto Sladburys Lane. The indicative plans and proposals can be summarised as follows:

- New vehicular access point with 2.4m x 43m visibility splays
- Combined pedestrian/vehicular access 5.8 metres wide.
- Size 3 Turning area
- 550m² swale Suds feature
- Pedestrian walking route around site perimeter including link points to internal footpath infrastructure or to external footpaths and green spaces
- 29 dwellings comprising a mix of apartments; detached; semi-detached; 2, 3, 4 bedrooms each with minimum of 100m² private amenity space, each with 2 no. parking spaces (most with associated cartlodge or garage provision) and visitor parking spaces

The application is accompanied by the following plans and documents (accounting for any amended and additional information received during the application):

- Amended Application Form (corrected Certificate B – Highways) – received 14.08.2025
- Site Plan – received 14.08.2025
- PA-10-A Amended Proposed Block Plan – received 14.08.2025
- PA-11 Proposed Storey Heights – received 08.07.2025
- Flood Risk Assessment Ref: 2409-955 (Ingent, June 2025) – received 08.07.2025
- Planning Statement – received 08/07/2025
- Planning Statement Addendum – received 30.09.2025
- Planning Statement Addendum – received 15.01.26
- Transport Assessment Ref: 24151 Issue: 2 (KMC, June 2025) – received 08.07.2025
- Tree Survey Schedule and Constraints Plan (TPS, December 2024) – received 08.07.2025
- Landscape Visual Impact Assessment (Stanfords, August 2025) – received 14.08.2025
- BNG Metric – received 11.07.2025
- Ecological Impact Appraisal (Liz Lord Ecology, Rev A, June 2025) – received 08.07.2025
- Biodiversity Net Gain (Liz Lord Ecology, Rev A, June 2025) – received 08.07.2025

Assessment

The material planning considerations relevant to the assessment and determination of this application can be summarised and addressed as follows:

1. Principle of Development & Strategic Green Gap Impact
2. Access, Parking & Highway Safety
3. Scale, Layout, Appearance & Landscaping
4. Residential Amenities & Living Conditions
5. Flood Risk, Drainage and Foul Sewage Disposal
6. Archaeology
7. Habitats, Protected Species and Biodiversity Enhancement (including BNG & RAMS)
8. Sustainable Construction & Energy Efficiency
9. Planning Obligations
10. Overall Planning Balance, Conclusions and Recommendation

1. Principle of Development & Strategic Green Gap Impact

Housing Land Supply and the 'Tilted Balance'

Under Section 70(2) of the Town and Country Planning Act 1990 and Section 38(6) of the Planning and Compulsory Purchase Act 2004, decisions must be taken in accordance with the Development Plan unless material considerations indicate otherwise. The NPPF confirms this plan-led approach.

The development plan comprises the Tendring District Local Plan (LP) 2013-2033, Section 1 which was adopted on 26 January 2021 (TDLP1) and Section 2 of the Tendring District Local Plan 2013-2033 and Beyond which was adopted on 25 January 2022 (TDLP2).

TDLP1 Policy SP3 provides the spatial strategy for North Essex, including Tendring, whereby existing settlements will be the principal focus for additional growth within the plan period. It states that development will be accommodated within or adjoining settlements according to their scale sustainability and existing role and beyond the main settlements the diversification of the rural economy and conservation and enhancement of the natural environment will be supported.

TDLP1 Policy SP3 relies on the TDLP2 to identify a hierarchy of Tendring settlements. New development will be accommodated according to the role of the settlement, sustainability, its physical capacity and local needs. TDLP2 Policies SPL1 and SPL2 provide for this by establishing the Tendring settlement hierarchy and address development outside of settlement development boundaries.

Following the publication of the 2025 SHLAA and the 2023 Housing Delivery Test, the Council previously demonstrated a five-year housing land supply. However, from 26 January 2026, the Local Plan becomes more than five years old and the District's housing requirement must be calculated using the higher Standard Method figure of 1,063 dpa. The latest SHLAA confirms only a 3.22-year supply, triggering NPPF paragraph 11(d). Accordingly, the tilted balance does apply to this decision.

Paragraph 8 of the NPPF confirms: Achieving sustainable development means that the planning system has three overarching objectives, which are interdependent and need to be pursued in mutually supportive ways (so that opportunities can be taken to secure net gains across each of the different objectives): a) an economic objective, b) a social objective, and c) an environmental objective. The proposal is assessed below against these objectives (with further detail elsewhere within this report).

However, even with the presumption in favour of sustainable development engaged, the proposal fails when assessed against the social, economic and environmental objectives of sustainable development, and the adverse impacts significantly and demonstrably outweigh the benefits.

a) an economic objective

Construction activity would generate short-term employment, and new residents would support local services. However, economic gains are modest and generic and do not justify development in a location explicitly protected from growth. The Strategic Green Gap designation plays a well-established role in maintaining the distinct character of Clacton and Holland-on-Sea, which in turn supports the District's economic identity.

Development that erodes this separation would harm the area's environmental and landscape qualities, which are themselves an economic asset. As such, the economic benefits carry limited weight.

b) a social objective

While the delivery of up to 30 dwellings would make a modest contribution to housing supply, the proposed site lies outside the Settlement Development Boundary (SDB) and within a designated

Strategic Green Gap. Policies SP3, SPL1 and SPL2 direct development to sustainable locations within or adjoining settlements. This site is not planned for growth in the adopted Plan and performs a clear spatial function in maintaining settlement identity.

The site is outside but adjacent to the edge of the defined Settlement Development Boundary of Clacton-on-Sea. The site would connect to existing footpaths and the adjacent open space within the new estate. Although, there are no bus stops in the immediate vicinity, Sladburys Lane provides a continuous, lit footpath from the site to Holland Road. The nearest bus stop with frequent services to Frinton, Walton and Clacton are approximately 0.6km from the site, with the centre of Holland and its array of amenities approximately 1 km from the site. These facilities include several shops, cafes, restaurants and pubs and local convenience stores.

For these reasons, the location of the site is considered to meet the social strand.

c) an environmental objective

This is the strand where the proposal fails most significantly.

Conflict with Strategic Green Gap

The site falls within a designated Strategic Green Gap (Local Plan Policy PPL6 Strategic Green Gaps). These areas prevent coalescence, maintain settlement identity, and protect long term physical and visual separation. The designation is supported by up to date evidence found sound at examination of the adopted Plan, and is explicitly identified in the ongoing Local Plan Review as a constraint that will not be reduced.

The Council has successfully resisted similar proposals within Strategic Green Gaps since adoption, demonstrating both the robustness and continued relevance of the policy.

Introducing built form within the Strategic Green Gap and outside the SDB would erode the openness and settlement separation that the designation seeks to protect. The resulting harm is an in-principle conflict that is not overcome by the development's scale, proximity to existing built form or by landscaping measures. This weighs heavily against the proposal and alone renders the principle of development unacceptable.

Policies require development to be directed to sustainable locations inside defined boundaries. Development here would constitute unplanned outward sprawl, contrary to the Development Plan.

Landscape and Visual Impact

While the LVIA suggests containment and limited visual effects, this does not overcome the in-principle environmental harm arising from the site's role within the Strategic Green Gap. Mitigation planting cannot replicate the function of strategic open land nor offset the policy conflict.

Accordingly, environmental harm is substantial and weighs very heavily against the proposal.

Local Plan Review

As part of the Local Plan Review, the Corporate Director's report to the Planning Policy and Local Plan Committee (8 December 2025) presented a proposed 'preferred' spatial strategy for growth to 2042 and beyond. The guiding principles include:

- ***Limiting Additional Housing Growth Around Clacton and the Garden Community***

Significant growth is already planned at Clacton and at the Tendring–Colchester Borders Garden Community, with approximately 1,700 homes at Hartley Gardens (Clacton) alone. Additional housing need is unlikely to be met through further expansion around Clacton.

- **Maintaining Strategic Green Gaps**

The Review proposes to carry forward and potentially expand Strategic Green Gaps, including those around Clacton, in order to maintain long term settlement identity and avoid coalescence.

The Local Plan Review Spatial Strategy Report therefore strengthens the LPA's position in resisting development on this site. It confirms that decision making remains plan led, that future growth will be focused on strategic locations (such as the A120 corridor and rail served settlements), and that no changes are proposed to the Strategic Green Gap affecting this site. The site is neither identified nor intended for development in the adopted or emerging spatial strategy, and the principle of 30 dwellings remains wholly unacceptable.

Principle of Development Conclusions

In summary, although the tilted balance is engaged due to the absence of a five-year housing land supply, the proposal conflicts fundamentally with the established Strategic Green Gap. The limited economic and social benefits do not outweigh the significant environmental harm resulting from unplanned outward expansion beyond the Settlement Development Boundary and the erosion of strategic open land protected by the Local Plan.

Contrary to NPPF Paragraph 11(d)(ii), the adverse impacts of granting planning permission would significantly and demonstrably outweigh the benefits when assessed against the policies of the NPPF taken as a whole, having particular regard to key policies directing development to sustainable locations. The adopted and emerging spatial strategies continue to reaffirm the importance of maintaining Strategic Green Gaps and focusing growth in planned, sustainable locations. As such, the proposal remains unacceptable.

2. Access, Parking & Highway Safety

Paragraph 114 of the NPPF requires that development provides safe and suitable access for all users, that parking and transport design accords with national guidance, and that any significant impacts on the transport network or highway safety are capable of being mitigated to an acceptable level. Paragraph 115 further clarifies that development should only be refused on highways grounds where it would result in an unacceptable impact on highway safety or where the residual cumulative impacts would be severe.

Policy SPL3 Part B of the Tendring District Local Plan 2013–2033 and Beyond seeks to ensure that new development is served by a safe and practicable access, that the highway network can accommodate the traffic generated, and that adequate vehicle and cycle parking is provided.

The Essex Parking Standards set out the relevant minimum requirements for parking and turning.

Although all matters are reserved, an outline application must still demonstrate that a safe and suitable means of access can be achieved. Detailed matters of layout, including full compliance with the adopted parking standards, will be assessed at the Reserved Matters stage. The indicative layout shows that appropriate parking, EV charging and cycle storage can be accommodated, subject to detailed design.

Objections have been received from local residents about the capacity and safety of Sladburys Lane and Pickers Ditch Bridge, including issues relating to road width, congestion, and pedestrian and cyclist safety.

Essex County Council, as the Highway Authority, has assessed the proposal and raises no

objection, subject to standard conditions. These include requirements for:

- A suitably designed access with appropriate kerb radii and footways;
- 2.4m x 43m visibility splays in accordance with the 30mph speed limit;
- A 2-metre-wide footway linking the site to Edwin Giles Way where feasible; and
- Provision of Residential Travel Information Packs to support sustainable transport.

These measures would ensure that a safe and suitable access can be achieved and that the development would not result in an unacceptable impact on highway safety and will be secured as part of the Reserved Matters application considering Access.

While local concerns about highway capacity are acknowledged, the Highway Authority has not identified any evidence of a severe residual cumulative impact or safety issue that would justify refusal. In the absence of such evidence, it would not be reasonable to refuse planning permission on highway safety or accessibility grounds.

Residents have also raised concerns about noise, disturbance, dust, construction traffic and potential road damage during the build period. These impacts are typical of construction activity and can be managed through a Construction Management Plan (CMP). A CMP condition would control working hours, dust suppression, wheel washing, traffic routing, loading areas and measures to protect neighbouring residents and highway users.

3. Scale, Layout, Appearance & Landscaping

Scale & Layout

Paragraph 135 of the NPPF 2024 requires that developments will function well and add to the overall quality of the area, are visually attractive as a result of good architecture, layout and appropriate and effective landscaping, are sympathetic to local character and history, maintain a strong sense of place and create places that are safe, inclusive and accessible.

Adopted Section 1 Policy SP7 of the 2013-33 Local Plan seeks high standards of urban and architectural design, which responds positively to local character and context.

Section 2 Policies SPL3 and LP4 of the Local Plan also require, amongst other things, that developments deliver new dwellings that are designed to high standards and which, together with a well-considered site layout, create a unique sense of place.

The surrounding area is made up of a varied residential character, comprising two-storey, one-and-a-half-storey and single-storey dwellings, both detached and semi-detached. Two-storey properties lie immediately to the west within the new estate, while bungalows and chalet-style dwellings are located opposite the site. Although the mixture of building designs and materials contributes positively to the overall character of the area, the prevailing pattern of development is of a typical urban density. It is not characterised by spacious plots or any other distinctive contextual qualities that would materially influence or constrain the form of development on the application site.

The submitted indicative layout (Drawing No. PA-10-A) shows that the site could physically accommodate 29 dwellings, including a mix of apartments, detached and semi-detached homes of 2, 3 and 4 bedrooms, each with adequate garden space and on-plot parking. The plans also illustrate a potential internal pedestrian route linking to existing footpaths and nearby open space. The proposed variation in building heights responds appropriately to the mixed character of the surrounding area, and the overall housing mix would contribute positively to the District's wider housing offer.

However, these elements merely demonstrate that a policy-compliant form of development could be achieved and therefore attract only neutral weight in the planning balance. The proposed pedestrian connections to existing footways and open space, although beneficial, represent a basic

requirement of new development. Moreover, the Council's Public Realm Team has confirmed that such a link is necessary to make the development acceptable in planning terms (explained in more detail below). As this requirement would be secured by condition in any event, it does not deliver any enhancement beyond standard policy expectations.

Appearance

In the event of an approval, the detailed design and materials finishes can be appropriately dealt with at the reserved matters stages of the application when considering Appearance.

Landscaping

Paragraph 136 of the NPPF (2024) highlights the importance of trees and the positive contribution they make to the character, quality and environmental performance of urban areas. It requires planning decisions to seek opportunities to integrate tree planting within developments and to ensure the retention of existing trees wherever possible.

In the event that outline planning permission is granted, conditions will be imposed on the outline approval to secure compliance with the submitted Arboricultural Impact Assessment (AIA), Tree Protection Plan (TPP) and Arboricultural Method Statement (AMS). These conditions will ensure that appropriate protective measures are implemented prior to and during construction.

Detailed hard and soft landscaping proposals will be required at the Reserved Matters stage for Landscaping. The Reserved Matters submission will be expected to deliver a comprehensive landscaping scheme, including the retention and enhancement of boundary vegetation, and must demonstrate full compliance with the requirements of both the AIA and the Landscape and Visual Impact Assessment (LVIA). This will ensure that the mitigation and enhancement measures identified within the LVIA are incorporated and that boundary screening is strengthened as part of the final design.

Scale, Layout, Appearance & Landscaping Conclusions

Although the size of the site and proposed quantum of development could accommodate an acceptable scale and layout, these do not overcome the fundamental policy objection. The application simply demonstrates how a policy compliant form of development could be achieved, being neutral in the overall planning balance.

In isolation, the indicative layout might be acceptable. However, given the overriding principle policy conflict relevant to this site, any form of residential development remains unacceptable regardless of how well it could be accommodated.

4. Residential Amenities & Living Conditions

Paragraph 135 of the NPPF 2024 includes that planning decisions should ensure developments create places that are safe, inclusive, and accessible, and which promote health and well-being with a high standard of amenity for existing and future users.

Section 1 Policy SP7 of the Local Plan requires that the amenity of existing and future residents is protected. Section 2 Policy SPL 3 Part C seeks to ensure that development will not have a materially damaging impact on the privacy, daylight, or other amenities of occupiers of nearby properties. Section 2 Policy SPL 3 Part B requires that new development meets practical requirements and that structures should be designed and orientated to ensure adequate daylight, outlook, and privacy for future and existing residents.

Furthermore, Policy LP4 j. states that new development must provide for private amenity space of a size and configuration that meets the needs and expectations of residents, and which is commensurate to the size of dwelling and the character of the area.

In addition, the Technical Housing Standards – Nationally Described Space Standard (2015) deals with internal space within new dwellings to ensure appropriate living conditions for future occupants.

The application is submitted in outline form with all matters reserved. As such, the detailed siting, design and window arrangement of each dwelling will be considered at the Reserved Matters stage, when full elevations and floor plans are provided.

At this stage, the indicative plans demonstrate that appropriate separation distances can be achieved, showing that the site is capable of accommodating up to 30 dwellings while providing acceptable living conditions for future occupants and safeguarding the amenities of neighbouring residents.

A full assessment of matters such as light, outlook, privacy, overlooking and compliance with the Technical Housing Standards – Nationally Described Space Standard will be undertaken as part of the Reserved Matters submission. However, based on the information available, officers are satisfied that a policy-compliant scheme can be achieved that protects the amenity of both existing and future residents.

Should planning permission be granted, a condition requiring the submission and approval of a Construction Management Plan would be imposed. This would ensure appropriate controls during demolition and construction, including the management of traffic, deliveries and working hours, in order to safeguard neighbouring amenity.

5. Flood Risk, Drainage and Foul Sewage Disposal

Paragraphs 181 and 182 of the NPPF (2024) require that development does not increase flood risk elsewhere and that proposals incorporate sustainable drainage systems (SuDS) designed with input from the Lead Local Flood Authority and supported by robust long-term maintenance arrangements. Paragraphs 187(e) and 198 of the NPPF (2024) require that development prevents unacceptable water pollution and is appropriate to its location with regard to potential environmental impacts.

Local Plan Policy PPL5 requires all new development to make adequate provision for drainage and sewerage, including the integration of SuDS, while Policy SPL3(B)(g) requires development to reduce flood risk and embed sustainable drainage within site design. Local Plan Policy PPL5 further confirms that connection to the mains sewer is the preferred option, in line with the drainage hierarchy and building regulations.

The information contained in the Flood Risk Assessment and Planning Statement demonstrates that the proposed development:

- Lies in Flood Zone 1 with low risk from all flooding sources.
- Incorporates a comprehensive SuDS strategy, including a 550m² swale, permeable paving, filter drains, and a fully engineered detention basin.
- Reduces runoff rates to greenfield levels, ensuring no increase in flood risk elsewhere.
- Provides long-term SuDS maintenance arrangements.
- Proposes mains foul sewer connection, preventing unacceptable pollution risk.

The Lead Local Flood Authority (LLFA) has been consulted and, having reviewed the FRA, raises no objection subject to standard SuDS conditions (detailed drainage design, storage verification, discharge control, treatment, maintenance plan and long-term maintenance logs).

Foul Sewer Connection

Connection to the mains foul sewer is feasible and expected, in line with Policy PPL5 and the drainage hierarchy.

However, Anglian Water Services (AWS) have provided comments explaining that the site is within the catchment of Clacton-Holland Haven Water Recycling Centre (WRC), which currently lacks the capacity to accommodate the additional flows generated by the proposed development, but the Centre is to be expanded between 2025-2030 raising no objection subject to a prior to occupation condition requiring written confirmation from Anglian Water confirming there is sufficient headroom at the water recycling centre to accommodate the foul flows from the development site. This condition shall cease to have effect if the development is first occupied after April 2030.

Under Section 45 of the Water Industry Act 1991, water companies have a statutory duty to connect a resident's service pipe to a public water main for domestic purposes, which include washing, cooking, and sanitation. Similarly, Section 106 of the same Act provides property owners with a statutory right to connect foul and surface water drainage to the public sewerage system.

While these rights are clear, it is important to note: Water companies may charge for these connections. Infrastructure charges may be levied by them to fund reinforcement of the wider network and Water companies retain rights of access to enable such connections.

For planning purposes, sewerage capacity is a material consideration under both national and local policy. Notably, paragraph 187(e) of the National Planning Policy Framework (NPPF) states planning decisions should (but not required) prevent development from contributing to or being affected by unacceptable levels of water pollution.

Despite the statutory right to connect, a water company (e.g. Anglian Water) cannot refuse a connection on capacity grounds. The planning system (not the water company) could control development lawfully until infrastructure is adequate via refusal or a pre-occupancy condition (e.g. Grampian conditions). The same approach could apply to other forms of infrastructure. While such conditions are lawful, it is recognised that pre-occupancy conditions may result in homes remaining vacant for an indefinite period, depending on third-party infrastructure delivery. This raises concerns about reasonableness, particularly where the timing of upgrades is uncertain or outside the developer's control. In turn there may be viability issues long term.

Nonetheless, the Environmental Permitting (England and Wales) Regulations 2016 provide a legal framework for water discharges, requiring companies to hold permits and comply with conditions to prevent pollution. Additionally, the Water (Special Measures) Act 2025 introduces further duties, including: Pollution Incident Reduction Plans, real-time monitoring of discharges and enhanced transparency and accountability.

Ultimately, the Environment Agency regulates and enforces these environmental protections. The planning system must assume that these regimes will operate effectively and cannot presume unlawful pollution will occur. In this case the Environment Agency regulates what is unacceptable levels of water pollution, by default what accords with the planning consideration of the NPPF Para 187(e) in this regard of connected drainage.

Therefore, while sewerage capacity is a material planning consideration, it is considered unreasonable to impose a condition that indefinitely delays occupation or refuse the development, especially where environmental harm is already regulated and controlled under separate statutory regimes and material legalisation.

For these reasons, it is not reasonable to refuse planning permission based on the comments from AWS, and it is not considered reasonable to impose the suggested condition.

The development complies with the relevant NPPF (2024) provisions and Local Plan Policies PPL5 and SPL3 in respect of flood risk, surface water drainage, and foul sewage disposal.

These matters can be satisfactorily addressed via conditions in the event of an approval.

6. Archaeology

Paragraph 207 of the NPPF requires that, where a site includes, or has the potential to include, heritage assets with archaeological interest, applicants must submit an appropriate desk-based assessment and, where necessary, a field evaluation.

Policy PPL7 of the Tendring District Local Plan 2013–2033 requires development affecting sites of known or suspected archaeological interest to be supported by suitable archaeological evaluation, ensuring preservation in situ or appropriate recording where necessary.

Consultation with Essex County Council Place Services (Archaeology) confirms that the site lies within an area recorded on the Essex Historic Environment Record (EHER 2973) as containing archaeological features identified through aerial photography. These include possible historic field boundaries, trackways of uncertain date and potential prehistoric ritual monuments. Sladburys Lane itself is a historic route linking Little Holland and Great Holland, with dispersed settlement evident on the Chapman and André map of 1777. As such, the proposed development has the potential to disturb or destroy surviving below-ground archaeological remains.

In accordance with national and local policy requirements, a programme of archaeological evaluation is therefore necessary to establish the presence, extent and significance of any archaeological deposits and to secure appropriate mitigation.

Should planning permission be granted, these requirements can be fully addressed through planning conditions, including:

- Submission and approval of a Written Scheme of Investigation (WSI) for archaeological trial trenching and investigation;
- Completion of the approved archaeological fieldwork prior to commencement of development; and
- Submission of a final archaeological report or Post-Excavation Assessment within agreed timescales.

As these matters can be satisfactorily secured by condition, archaeology does not form a reason for refusal in this case.

7. Habitats, Protected Species and Biodiversity Enhancement (including BNG & RAMS)

This report addresses the distinct legal requirements, ensuring a comprehensive analysis of the ecology and biodiversity impacts of the proposal in line with regulatory standards.

General duty on all authorities

The Natural Environment and Rural Communities Act 2006 amended by the Environment Act 2021 provides under Section 40 the general duty to conserve and enhance biodiversity: “For the purposes of this section “the general biodiversity objective” is the conservation and enhancement of biodiversity in England through the exercise of functions in relation to England.” Section 40 states authorities must consider what actions they can take to further the general biodiversity objective and determine policies and specific objectives to achieve this goal. The actions mentioned include conserving, restoring, or enhancing populations of particular species and habitats. In conclusion for decision making, it is considered that the Local Planning Authority must be satisfied that the development would conserve and enhance.

This development is subject to the general duty outlined above.

Biodiversity net gain

The application is accompanied by a Biodiversity Net Gain (BNG) Metric. BNG is an approach that seeks to ensure the natural environment is left in a measurably better state following development,

with a statutory minimum requirement for a 10% net gain in biodiversity value. This applies to most development types, excluding, for example, Listed Building Consent, Advert Consent, Reserved Matters, Prior Approvals, Lawful Development Certificates, householders, self-builds, and applications below the threshold (i.e., those not affecting a priority habitat and impacting less than 25 sqm of habitat or 5m of linear habitat such as hedgerow).

Under the statutory BNG framework, a deemed planning condition is automatically applied to approvals. This condition requires submission and approval of a Biodiversity Gain Plan (BGP) prior to commencement, which is the mechanism through which compliance with the 10% gain requirement is confirmed.

In this context, Government guidance makes clear that it would generally be inappropriate to refuse planning permission solely on the basis that the biodiversity gain objective may not be met, as this is instead dealt with at the condition-discharge stage. Accordingly, BNG could be secured via condition in the event of an approval.

Protected Designated Habitats

The site falls within the recreational Zone of Influence (ZOI) of the Essex Coast Recreational disturbance Avoidance and Mitigation Strategy (RAMS). Under the Habitats Regulations, a development which is likely to have a significant effect or an adverse effect (alone or in combination) on a European designated site must provide mitigation or otherwise must satisfy the tests of demonstrating 'no alternatives' and 'reasons of overriding public interest'. There is no precedent for a residential development meeting those tests, which means that all residential development must provide mitigation.

A Habitat Regulations Assessment has been completed for the proposal. This residential development lies within the Zone of Influence. The site is not within or directly adjacent to one of the European designated sites but is approximately 5.7km metres from the Essex Estuaries Special Areas of Conservation (SAC) and 7.5km from the Colne Estuary (Mid-Essex Coast Phase 2) Ramsar Site.

The new development would be likely to increase the number of recreational visitors to the designated area and, in combination with other developments, it is likely that the proposal would have significant effects on the designated site.

In accordance with Natural England's advice there is no requirement to consult them due to the specified mitigation which would be secured via a legal agreement. The legal agreement would secure the necessary financial contributions for RAMS to ensure that the development would not adversely affect the integrity of European Designated Sites in accordance with Section 1 Policy SP2 and Section 2 Policy PPL4 of the Tendring District Local Plan 2013-2033 and Regulation 63 of the Conservation of Habitat and Species Regulations 2017.

Protected Species

In accordance with Natural England's standing advice, the application site and surrounding habitats have been assessed for potential impacts on protected species. The application is supported by the following ecological reports:

- Ecological Impact Appraisal (Liz Lord Ecology, Rev A, June 2025) and
- Biodiversity Net Gain (Liz Lord Ecology, Rev A, June 2025)

These reports provide a satisfactory and comprehensive assessment of the site's ecological baseline and identify the measures necessary to ensure that any approved development could proceed without causing significant harm to biodiversity.

Essex County Council Place Services Ecology (ECC Ecology) have been consulted and confirm that

the submitted information is sufficient to support determination of the application. Their review indicates that the likely ecological impacts are understood and that the mitigation required to make the development acceptable from an ecological perspective can be secured by condition, should planning permission be granted.

In the event of an approval, the mitigation and enhancement measures set out within the submitted ecology reports would be secured by appropriate conditions. This includes the requirement for a detailed Biodiversity Enhancement Strategy to deliver proportionate biodiversity net gains in accordance with Paragraphs 187(d) and 193(d) of the National Planning Policy Framework (December 2024) and to enable the Local Planning Authority to comply with its statutory duties, including the biodiversity duty under Section 40 of the NERC Act 2006 (as amended).

Ecology Conclusions

While BNG and ecological matters could be satisfactorily addressed via conditions in the event of an approval, this does not alter or overcome the fundamental reasons for refusal set out above.

8. Sustainable Construction & Energy Efficiency

TDLP Section 2 Policies PPL10 and SPL3, together, require consideration be given to renewable energy generation and conservation measures. Proposals for new development of any type should consider the potential for a range of renewable energy generation solutions, appropriate to the building(s), site and its location, and be designed to facilitate the retro-fitting of renewable energy installations.

The use of electric vehicle charging points, green/brown roofs, PV panels, water-butts, recycling facilities (during construction and to serve the development), air-source heat pumps and / or SuDS to aid the sustainability of the development should be an integral part of the design.

These matters can be satisfactorily addressed through the detailed design stage as part of the Reserved Matters application and do not form a reason for refusal.

9. Planning Obligations

Affordable Housing

Section 1 Policy SP4 of the Tendring District Local Plan (TDLP) seeks to ensure that projected housing needs are met over the plan period, including the provision of mixed tenure housing to support people and families unable to access market housing. In accordance with Section 2 Policy LP5, proposals for 11 or more net dwellings are expected to provide 30% affordable housing.

Although the supporting information indicates the applicant's intention to deliver 30% affordable housing, no completed legal agreement accompanies the application, and the affordable housing provision is therefore not secured.

Recreational Disturbance Mitigation (RAMS)

As set out above, financial contributions toward the Essex Coast RAMS are required to ensure the development would not adversely affect the integrity of European Designated Sites, in accordance with Section 1 Policy SP2, Section 2 Policy PPL4 and Regulation 63 of the Conservation of Habitats and Species Regulations 2017.

The absence of a completed legal agreement means that this necessary mitigation is not secured, and compliance with the above policy and legislative requirements has not been demonstrated.

Public Open Space and Play Facilities

TDLP Section 2 Policy HP5 requires the maintenance, enhancement and provision of accessible public open space, sports and recreational facilities, with standards informed by the Council's 2017 Open Spaces Strategy. Policy DI1 also requires new development to be supported by appropriate infrastructure.

Residential schemes of 11 or more dwellings or on sites of 1.5 hectares or above are expected to provide a minimum of 10% of the gross site area as usable open space, with no single area smaller than 0.15 hectares, along with financial contributions for maintenance where appropriate.

Consultation with the Council's Public Realm Team confirms a deficit of 2.22 hectares of equipped play space in Clacton & Holland-on-Sea, though formal open space provision in the wider area is sufficient to accommodate some growth.

In this case, the adjacent development of 132 dwellings has already delivered open space and equipped play facilities that exceed its 10% on-site provision requirement. This existing provision is considered sufficient to accommodate the additional demand generated by the current proposal, and no further on-site open space or play space contribution is therefore required. However, should the development be approved, the Reserved Matters submission would need to demonstrate a safe and convenient pedestrian link to these existing facilities. This would be secured through an appropriately worded planning condition to ensure its timely delivery and retention.

Planning Obligation Conclusions

At the request of the applicant's agent, a Section 106 agreement was instructed in order to secure the necessary planning obligations, including affordable housing and the required RAMS contribution. This instruction was made in full awareness that the Local Planning Authority (LPA) is refusing the application due to a fundamental objection to residential development in this location.

Despite the applicant's willingness to enter into a legal agreement, the Section 106 has not progressed or been completed. Given the LPA's obligation to determine applications in a timely manner, the decision cannot be delayed further while the legal agreement remains unresolved. Consequently, the necessary planning obligations are not secured at the point of determination.

Biodiversity Net Gain (BNG) is not dependent on a Section 106 agreement at outline stage, as the Environment Act 2021 provides for BNG delivery, implementation and long-term monitoring to be secured via planning condition. In the event of an approval, appropriate BNG conditions could be imposed accordingly.

However, without a completed Section 106 agreement, the proposal fails to secure the required planning obligations relating to affordable housing and RAMS. The development is therefore contrary to the relevant policy and legislative requirements, forming a reason for refusal. Should the applicant choose to appeal the decision, the outstanding Section 106 matters could be concluded as part of the appeal process.

10. Overall Planning Balance, Conclusions and Recommendation

In applying the tilted balance under NPPF Paragraph 11(d), the Council's housing shortfall is acknowledged and the delivery of up to 30 dwellings, including affordable housing, weighs modestly in favour of the proposal. The site is also capable of achieving acceptable standards in respect of access, drainage, ecology, residential amenity and other technical matters, all of which weigh neutrally or carry limited positive weight.

However, these benefits are clearly outweighed by the fundamental and in-principle harm arising from the site's location outside the Settlement Development Boundary and within a designated Strategic Green Gap. The proposal would result in unplanned outward sprawl and undermine the long-established spatial strategy set out in Policies SP3, SPL1, SPL2 and PPL6. This strategic harm is substantial, irreversible, and cannot be mitigated.

The development also fails to secure essential planning obligations relating to affordable housing and RAMS mitigation, adding further policy conflict.

Accordingly, the adverse impacts of the development would significantly and demonstrably outweigh the benefits, contrary to NPPF Paragraph 11(d)(ii), when assessed against the Framework taken as a whole. The proposal represents an unsustainable and inappropriate form of development, and the principle of residential development on this site is unacceptable.

6. RECOMMENDATION

Refusal - Outline

7. REASONS FOR REFUSAL

1. UNACCEPTABLE IN PRINCIPLE

The application site lies outside any defined Settlement Development Boundary and within a designated Strategic Green Gap, where new residential development is strictly controlled.

The proposal for up to 30 dwellings would conflict with Policies SP3, SPL1 and SPL2 of the Tendring District Local Plan by introducing unplanned growth in a location not identified for development and contrary to the adopted spatial strategy, which directs housing to sustainable, plan-led locations within or adjoining existing settlements.

The development would also erode the openness and separation the Strategic Green Gap is specifically designated to protect, undermining its purpose and resulting in unacceptable harm to local landscape character, contrary to Policy PPL3.

While the submitted LVIA indicates that landscape and visual impacts could be limited, and notwithstanding the arboricultural information provided, these technical matters do not outweigh the fundamental in-principle policy conflicts or render the site suitable for residential development.

Contrary to National Planning Policy Framework 2024 (NPPF) Paragraph 11 d) ii. the adverse impacts of granting planning permission would significantly and demonstrably outweigh the benefits, when assessed against the policies in the NPPF taken as a whole, having particular regard to key policies for directing development to sustainable locations.

The proposal therefore represents an unsustainable and inappropriate form of development, contrary to the adopted Local Plan, and the principle of residential development on this site is unacceptable.

2. FAILURE TO SECURE PLANNING OBLIGATIONS

Paragraph 56 of the National Planning Policy Framework 2024 (NPPF) states that local planning authorities should consider whether otherwise unacceptable development could be made acceptable using planning obligations. Planning obligations should only be used where it is not possible to address unacceptable impacts through a planning condition.

The application fails to secure the necessary planning obligations required to make the development acceptable in planning terms.

In the absence of a completed Section 106 agreement, the proposal does not secure the provision of 30% affordable housing as required by Policies SP4 of the Tendring District Local Plan Section 1 and LP5 of Section 2, nor does it secure the financial contribution toward the Essex Coast Recreational Disturbance Avoidance and Mitigation Strategy (RAMS) necessary to ensure no adverse effect on the integrity of European designated sites, contrary to Policies SP2

and PPL4, and Regulation 63 of the Conservation of Habitats and Species Regulations 2017.

Although the applicant indicated a willingness to enter into such an agreement, no legal obligation has been completed, and the essential mitigation and infrastructure requirements are therefore not secured at the point of determination.

As a result, the development is contrary to the Local Plan and national legislation, and permission must be refused on this basis.

8. INFORMATIVES

Positive and Proactive Statement

The Local Planning Authority has undertaken a positive and proactive approach in assessing this application, considering all relevant national and local planning policies alongside other material considerations to reach a balanced planning judgment. Despite this, the identified issues are so fundamental that a satisfactory solution could not be achieved. Consequently, due to the significant harm outlined in the reasons for refusal, approval has not been possible.

Plans and Supporting Documents

The Local Planning Authority has resolved to refuse the application for the reason(s) set out above. For clarity, the refusal is based upon the consideration of the plans and supporting documents accompanying the application as follows, (accounting for any updated or amended documents):

- Amended Application Form (corrected Certificate B – Highways) – received 14.08.2025
- Site Plan – received 14.08.2025
- PA-10-A Amended Proposed Block Plan – received 14.08.2025
- PA-11 Proposed Storey Heights – received 08.07.2025
- Flood Risk Assessment Ref: 2409-955 (Ingent, June 2025) – received 08.07.2025
- Planning Statement – received 08/07/2025
- Planning Statement Addendum – received 30.09.2025
- Planning Statement Addendum – received 15.01.26
- Transport Assessment Ref: 24151 Issue: 2 (KMC, June 2025) – received 08.07.2025
- Tree Survey Schedule and Constraints Plan (TPS, December 2024) – received 08.07.2025
- Landscape Visual Impact Assessment (Stanfords, August 2025) – received 14.08.2025
- BNG Metric – received 11.07.2025
- Ecological Impact Appraisal (Liz Lord Ecology, Rev A, June 2025) – received 08.07.2025
- Biodiversity Net Gain (Liz Lord Ecology, Rev A, June 2025) – received 08.07.2025

3. FURTHER CONSIDERATIONS IN MAKING THIS DECISION

Climate Change Act 2008 / Net Zero Commitments

Tendring District Council has declared a climate emergency, and this is a material consideration. Furthermore, Tendring District Council has set a net zero target by 2050. For further information please go to our website: [Climate Change - What is the Council doing?](#)

Equality Impact Assessment

In making this recommendation/decision regard must be had to the public sector equality duty (PSED) under section 149 of the Equality Act 2010 (as amended). This means that the Council must have due regard to the need in discharging its functions that in summary include A) Eliminate unlawful discrimination, harassment and victimisation and other conduct prohibited by the Act; B. Advance equality of opportunity between people who share a protected characteristic* (See Table) and those who do not; C. Foster good relations between people who share a protected

characteristic* and those who do not, including tackling prejudice and promoting understanding.

It is vital to note that the PSED and associated legislation are a significant consideration and material planning consideration in the decision-making process. This is applicable to all planning decisions including prior approvals, outline, full, adverts, listed buildings etc. It does not impose an obligation to achieve the outcomes outlined in Section 149. Section 149 represents just one of several factors to be weighed against other pertinent considerations.

In the present context, it has been carefully evaluated that the recommendation articulated in this report and the consequent decision are not expected to disproportionately affect any protected characteristic* adversely. The PSED has been duly considered and given the necessary regard, as expounded below.

Protected Characteristics *	Analysis	Impact
Age	The proposal put forward will not likely have direct equality impacts on this target group.	Neutral
Disability	The proposal put forward will not likely have direct equality impacts on this target group.	Neutral
Gender Reassignment	The proposal put forward will not likely have direct equality impacts on this target group.	Neutral
Marriage or Civil Partnership	The proposal put forward will not likely have direct equality impacts on this target group.	Neutral
Pregnancy and Maternity	The proposal put forward will not likely have direct equality impacts on this target group.	Neutral
Race (Including colour, nationality and ethnic or national origin)	The proposal put forward will not likely have direct equality impacts on this target group.	Neutral
Sexual Orientation	The proposal put forward will not likely have direct equality impacts on this target group.	Neutral
Sex (gender)	The proposal put forward will not likely have direct equality impacts on this target group.	Neutral
Religion or Belief	The proposal put forward will not likely have direct equality impacts on this target group.	Neutral

AUTHORITY FOR DELEGATED DECISION

Under the powers delegated to the Director of Planning and Community, the discharge of the Town and Country Planning Conservation functions as specified in Schedule 1 to the Local Authorities (Functions and Responsibilities (England) Regulations 2000 (as amended) and as detailed in Appendix 1 to Part 3 of the Constitution. Under Part 3, Schedule 3 – Responsibility for Executive Functions delegated to Officers paragraph 4.3 (1) – the Corporate Director has delegated authority to discharge executive functions within their respective service areas (Part 3.38). All delegations are subject to consultation where considered appropriate in the circumstances (paragraph 4.3 (4)(ii) – Part 3.39).

The Corporate Director Planning and Community Gary Guiver has delegated operational matters relating to all Planning Decisions to the Head of Planning and Building Control John Pateman-Gee.